

1. Introduction

- 1.1. ProFormaMagic Inc. (hereinafter – the “Company”, “We”, “Our” and “Us”) offers users and companies (hereinafter – the “You” or “Your”) access to our financial analysis platform and related services (hereinafter – the “Services”). By using Our Services, You agree to the following conditions, on behalf of yourself, all members of Your household, and others who use any Service under Your account.
- 1.2. These Terms of Use (hereinafter – the “Terms”) govern Your use of Our Services, which are currently available at <https://proformamagic.com> (hereinafter – the “Website”). Pro Forma Magic Inc. owns and operates the Website.
- 1.3. To use Our Services, You must agree to all the Terms outlined below, without any objections or modifications. By accepting these Terms, You also agree to the Privacy Policy available at Privacy Policy.
- 1.4. You automatically agree to these Terms by (1) clicking the appropriate button on our Website or configuring Your Web browser settings, (2) registering on Our Website (as described below), or (3) interacting with our Website.
- 1.5. Please read these Terms carefully before accessing or using Our Services. If You do not agree with the Terms and Our policies, You may not access or use the Services.
- 1.6. We comply with the General Data Protection Regulation (the “GDPR”; Regulation (EU) 2016/679 of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data), the California Consumer Privacy Act of 2018 (hereinafter – the “CCPA”), and other regulatory acts.

2. Registration

To begin using the Services, schedule a consultation via the "Get Started" form on our website. Please review our Privacy Policy to understand our data collection practices.

3. Our services

Our Website offers a variety of Services, including UI/UX Design, Product Prototyping, and Custom Analytics Dashboards. We may introduce new Services at our discretion. Service terms are detailed in a separate cooperation agreement.

4. Failed charges

- In case of overdue payments, we hold the right to:
- o Declare all outstanding amounts immediately due and payable.
 - o Immediately suspend Service access until full payment is received.
 - o We will suspend IT specialist involvement in your project, and you will temporarily or permanently lose Service access. Upon successful debt repayment, IT specialist involvement will resume. If the debt remains unpaid for an extended period (as defined in the main cooperation agreement), we may terminate the agreement and invoke the Arbitration Clause.

5. Termination and pause of Our Services

Service termination or suspension will follow the guidelines in the main cooperation agreement and these Terms.

6. Intellectual property

The Website, its software, infrastructure, databases, and content (including text, images, and logos) are owned by us or our licensors and are protected by intellectual property laws. These Terms do not transfer any intellectual property rights, which are governed by the main cooperation agreement.

7. Third-party links

Our Website may link to third-party sites. We are not responsible for their content, privacy policies, or practices. We are not liable for any damages from your use of these third-party sites. Please review their terms and privacy policies.

8. Use policies

- 8.1. You are responsible for your use of the Services and any shared information.
- 8.2. The Services are for your use and/or users under the same obligations as outlined in the main cooperation agreement.
- 8.3. Users must be 18 or older and provide a valid email and other required information to use the Services.
- 8.4. Users must comply with these Terms to prevent fraud, ensure service quality, and protect the integrity of our Services.
- 8.5. Service quality depends on your internet connection, for which we are not responsible. We may suspend or terminate access if your use is unlawful, prohibited, or detrimental to our Services or other users.
- 8.6. You will indemnify us from claims resulting from your breach of obligations, covering losses and damages incurred.

9. Our obligations

We strive to provide quality Services, improve our expertise, and use licensed software. We are not liable for service disruptions due to force majeure. We implement data security measures and may use subcontractors under the same obligations. We may assign our rights and obligations, notifying you in writing.

10. Limitation of liability

We are not liable for indirect, incidental, special, or punitive damages, including loss of profits, data, or goodwill, resulting from your use of our Services, third-party conduct, or unauthorized access, even if advised of such potential damage.

11. Governing law

These Terms are governed by the laws of Ukraine. Disputes shall be resolved by the International Commercial Arbitration Court at the Ukrainian Chamber of Commerce and Industry, with one arbitrator chosen by the Claimant. The arbitration location is Kyiv, and the language is English. If any provision is invalid, the remaining provisions remain in effect. These Terms constitute the entire agreement, superseding prior agreements.

12. Changes

We may modify or replace these Terms at any time. For significant changes, we will provide notice before they take effect. By continuing to use our Services, you agree to the revised terms. If you disagree, you must terminate your use of the Services.

13. Contact Us

To resolve complaints or get more information, contact us at support@proformamagic.com.